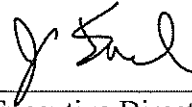


FIRST ENDORSEMENT

Executive Director, Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, August 10, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27284 against Police Officer Brandon Rivera, Tax Registry No. 965457. The case was conferenced on July 11, 2023, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of forfeiture of TWENTY (20) vacation days.



Executive Director
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27284
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, RIVERA	FIRST BRANDON	M.I. L	COMMAND 110 PRECINCT
SHIELD NO. 17431	TAX REGISTRY NO. 965457	SOCIAL SECURITY NO.	DATE APPOINTED 01/10/2018	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Brandon Rivera, on or about May 30, 2021, at approximately 0030, while assigned to 110 PCT and on duty, in the vicinity of 76-13 Broadway and in front of 41-27 77th Street wrongfully used force, in that he struck § 87(2)(b) with a radio without police necessity.	PLEADED GUILTY	VACATION DAYS 20.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Brandon Rivera, on or about May 30, 2021, at approximately 0030, while assigned to 110 PCT and on duty, in the vicinity of 76-13 Broadway and in front of 41-27 77th Street, Queens County, wrongfully used force, in that he struck § 87(2)(b) with a radio a second time without police necessity.	PLEADED GUILTY	
3 . Police Officer Brandon Rivera, on or about May 30, 2021, at approximately 0030, while assigned to 110 PCT and on duty, in the vicinity of in front of 76-13 Broadway, Queens County, was discourteous, in that he spoke discourteously to § 87(2)(b) by stating "Shut the fuck up. Nobody told you to run, you fucking idiot. Fuck you "without sufficient legal authority.	PLEADED GUILTY	

DC Butler
FIRST DEPUTY COMMISSIONER

11/9/23
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

1/2/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner November 8, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-27284 against Police Officer Brandon Rivera, Tax #965457, with the recommendation that Police Officer Rivera forfeit twenty (20) vacation days. Assistant Deputy Commissioner, Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement. **RECOMMEND APPROVAL.**

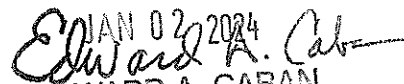
TIK/pk



Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

APPROVED

JAN 02 2024

EDWARD A. CABAN
POLICE COMMISSIONER